



POLICE DEPARTMENT

September 10, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202302537 (Incident Date: March 25, 2023) regarding Police Officer Nicholas Toner, Tax No. 968845 (DADS No. 2024-31329)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202302537, pertaining to Police Officer Nicholas Toner. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Toner would be detrimental to the Police Department's disciplinary process.

In this case, Police Officer Toner and several other officers stopped a vehicle because the windows were heavily tinted, violating NYS Vehicle and Traffic Law. Additionally, the affixed license plate did not match the vehicle's registration. The Courts have held that an officer does not need further reasonable suspicion to control the movement of passengers during a traffic stop, and passengers can be ordered out of the vehicle until the stop is completed. Here, CCRB acknowledged that the initial reason for the stop was "within NYPD guidelines"; thus, the officers had probable cause to stop the vehicle. Upon review of the available evidence, the Police Commissioner finds that Officer Toner's actions were within guidelines, and thus, the passenger was lawfully stopped. Notably, the passenger was only stopped for a reasonable period and was released once the investigation was concluded.

Regarding the remaining charges, the Police Commissioner agrees with CCRB's substantiated findings that Police Officer Toner engaged in an improper frisk and search of an individual and a frisk of a jacket and failed to provide his business card as required. However, he disagrees with the recommended penalty. A review of Police Officer Toner's disciplinary history revealed no prior substantiated CCRB allegations or formal Department disciplinary history. Based

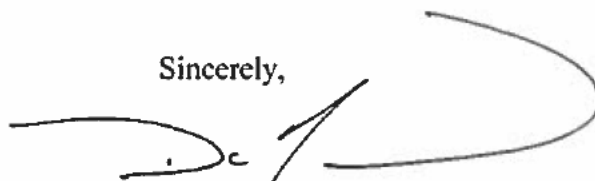
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on Police Officer Toner's lack of disciplinary history, the Police Commissioner believes Charges and Specifications are not the appropriate form of discipline.

Officer Toner has been employed for five years, has no prior substantiated CCRB cases, and has no formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation of an improper stop. Additionally, the Police Commissioner intends to issue Police Officer Toner a Schedule "B" Command Discipline with the forfeiture of five (5) vacations day for the improper frisk of two individuals, failing to provide business cards to two individuals, and an improper search of an individual. Furthermore, Police Officer Toner shall receive formalized training in Patrol Guide Procedure 212-11 (Investigative Encounters), as it pertains to searches and frisks.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is fluid and cursive, with a large loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 17, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202302537 (Incident Date: March 25, 2023) regarding Police Officer Nicholas Toner, Tax No. 968845 (DADS No. 2024-31329)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, June 21, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino's notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against Officer Toner would be detrimental to the Police Department's disciplinary process. Consequently, you concluded you would retain jurisdiction and direct the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) vacations day for the improper frisk of two individuals, failing to provide business cards to two individuals, and an improper search of an individual. Additionally, you directed Officer Toner to receive formalized training in Patrol Guide Procedure 212-11, encompassing Investigative Encounters.

We disagree with your determination that Officer Toner's stop of the uninvolved vehicle passenger was lawful. Assuming arguendo that Officer Toner possessed probable cause to stop the vehicle, as the CCRB investigation and the Department agree, he was not subsequently permitted to stop or detain a passenger absent additional indicia of criminality. See, e.g., People v. Campbell, 245 A.D.2d 191 (1st Dep't 1997); People v. Antelmi, 196 A.D.2d 658 (2d Dep't 1993); People v. Greene, 135 A.D.2d 449 (1st Dep't 1987). Here, Officer Toner articulated no such suspicions in his statement to the CCRB. As such, and as the Department conceded, his frisk and search of that individual were also similarly unlawful.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that you permit the disciplinary process against Officer Toner to proceed.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 18, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

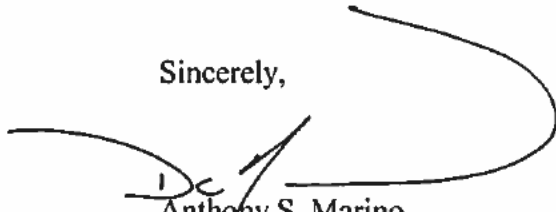
Re: CCRB Case No. 202302537 (Incident Date: March 25, 2023) regarding Police Officer Nicholas Toner, Tax No. 968845 (DADS No. 2024-31329)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 17, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Police Officer Nicholas Toner. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Toner for the reasons expressed in my September 10, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegation of an improper stop. Additionally, the Police Commissioner directs that Police Officer Toner be issued a Schedule “B” Command Discipline with the forfeiture of five (5) vacations day for the improper frisk of two individuals, failing to provide business cards to two individuals, and an improper search of an individual. Furthermore, Police Officer Toner shall receive formalized training in Patrol Guide Procedure 212-11 (Investigative Encounters), as it pertains to searches and frisks.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office